



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 28, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202003717 regarding Captain Ronald Ramos, Tax No. [REDACTED] (DADS No. 2022-24869)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action will be taken against Captain Ramos. In this matter, the Police Commissioner has reviewed the relevant available footage provided by the Civilian Complaint Review Board ("CCRB") and has determined that the actions of Captain Ramos do not rise to the level of actionable misconduct. As a result, the penalty proposed by the CCRB is incongruent with Captain Ramos' actions who will receive No Disciplinary Action for ordering his subordinate officers to discharge Oleoresin Capsicum Spray ("OC Spray") at a large and unruly crowd.

At the time of the underlying incident, Captain Ramos was assigned to the Strategic Response Group. Members of this unit are specially trained in deploying various crowd dispersal tactics, including discharge of OC Spray. The available video footage shows that the uniformed members of the service at the scene of the underlying protest were besieged by protesters who vastly outnumbered the members of the service. Also, it must be noted that the protesters were constantly pelting members of the service with projectiles, including water bottles. It was at this time that Captain Ramos correctly ordered his subordinate officers to discharge OC Spray in order to disperse the large and hostile crowd and to create a zone of safety for the NYPD personnel.

Therefore, based on the foregoing, the Police Commissioner has determined that Captain Ramos will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-01 (Force Guidelines), Patrol Guide Procedure 221-02 (Use of Force), and Patrol Guide Procedure 221-07 (Use of Oleoresin Capsicum Pepper Spray Devices).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', with a stylized, flowing script.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office